

IN THE HIGH COURT AT CALCUTTA

Mahesh Sharma vs Union Of India & Ors. ... on 6 February, 2024
[2023] 1 SCR 303, (2022) 9 SCC 341
Bench: Bela Trivedi, CJI and Gauri Godse, J.

JUDGMENT

Bela Trivedi, CJI

1. The petitioner, Mahesh Sharma, invokes the extraordinary jurisdiction of this Court under Article 32 of the Constitution of India challenging state action concerning digital privacy and surveillance disclosures, contending violation of Article 21 privacy and Article 19(1)(a) expression.
2. Mr./Ms. Sethi, learned Senior Counsel for the petitioner, argued that the impugned measure fails the proportionality standard ? legality, legitimate aim, necessity, and balancing ? recognized in Maneka Gandhi and subsequent authorities.
3. Reliance was placed on (2017) 10 SCC 1 in the case of Justice K.S. Puttaswamy v. Union of India, and on (2020) 3 SCC 637 in the case of Anuradha Bhasin v. Union of India.
4. The learned Solicitor General defended the action as falling within reasonable restrictions under Article 19(2) and Article 21 framework, citing national security and administrative exigency.
5. Upon evaluation, this Court finds that while the State has legitimate interests, the absence of procedural safeguards renders the impugned action disproportionate under Articles 14 and 21 of the Constitution of India.
6. The writ petition under Article 32 of the Constitution is accordingly disposed of with a direction to decide the representation within eight weeks.

Gauri Godse, J. - I agree.